

Franciscus Dylan Rosario
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Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNLIMITED CIVIL JURISDICTION

FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,
v.
CSAA INSURANCE EXCHANGE
DEFENDANT

Case No.: CGC-25-631802

DECLARATION OF DYLAN FRANCISCUS ROSARIO IN
OPPOSITION TO DEFENDANT'S SPECIAL MOTION
TO STRIKE, DEMURRER, AND MOTION TO STRIKE
(CCP §436)

(Cal. Rules of Court, rule 3.1115; Code Civ. Proc., §2015.5)

Cross-noticed for hearing May 13, 2026, 9:00 a.m.,
Dept. 302; see schedule below. Complaint filed:
Dec. 23, 2025
FAC filed: Feb. 25, 2026

Anti-SLAPP	Demurrer	MTS (CCP section 436)
May 13, 2026 9:00 a.m., Dept. 302 Defendant CSAA Insurance Ex- change	May 13, 2026 9:00 a.m., Dept. 302 Defendant CSAA Insurance Ex- change	May 13, 2026 9:00 a.m., Dept. 302 Defendant CSAA Insurance Ex- change

1 PLAINTIFF'S AUTHORITY TO FILE

2 Plaintiff Dylan Franciscus Rosario submits this Declaration in Opposition under California
3 Rules of Court, rule 3.1115, and Code of Civil Procedure section 2015.5. Plaintiff's right
4 to verify factual matters by declaration under penalty of perjury is established by section
5 2015.5, which authorizes any matter required to be verified by oath to be supported by an
6 unsworn declaration. This Declaration is filed in support of Plaintiff's Operative Oppositions
7 filed concurrently for the May 13, 2026, 9:00 a.m. hearing in Department 302. Filed on May
8 8, 2026 in compliance with section 1005(b) and the Court's April 30, 2026 minute order.

9 PART A. FOUNDATIONAL PERCIPIENT FACTS

- 10 4. I am the plaintiff in the underlying action Rosario v. Abdelhalim, Superior Court
11 of California, County of San Francisco, case number CGC-21-594102 (the "underlying
12 matter"). The 911 audio recording, body-worn camera footage, and CAD logs from the
13 February 4, 2021 incident are central to both the underlying matter and this action.
- 14 5. I also filed case CGC-25-631802, in which I am the plaintiff in pro per, against Defendant
15 CSAA Insurance Exchange. The operative pleading is the First Amended Complaint,
16 filed February 25, 2026 (Plaintiff's First Amended Complaint, filed February 25, 2026
17 (IFP; Register of Actions, CGC-25-631802)). This case concerns CSAA's claim-handling
18 conduct in connection with the February 4, 2021 incident and the subsequent insurance
19 claim I submitted.
- 20 6. CSAA Insurance Exchange is the licensed California insurer that issued the insurance
21 policy covering the February 4, 2021 incident. CSAA issued a written denial of my
22 claim on or about February 25, 2021, under claim number 1004-09-1054, reciting that
23 CSAA had "concluded" its investigation and had "carefully reviewed the facts and
24 circumstances."
- 25 7. To the best of my knowledge and information, CSAA issued that denial within approx-
26 imately 21 days of the February 4, 2021 collision, without obtaining the reasonably
27 available silent witness materials: the 911 audio recording, body-worn camera footage
28 from responding San Francisco Police Department officers, and computer-aided dispatch
29 logs.
- 30 8. The denial letter does not identify any specific policy provisions applied, does not docu-
31 ment any evidence reviewed, and does not include the Department of Insurance review

notice required by 10 Cal. Code Regs. section 2695.7(b)(3). I have personal knowledge of the contents of the denial letter because I received it and read it.

9. In the underlying matter CGC-21-594102, defense counsel for the underlying defendant issued a Compex Subpoena CA1147102-021 dated February 1, 2024, commanding the San Francisco Police Department to produce the 911 audio recording, body-worn camera footage, CAD logs, and “all documents and records stored in any format” relating to Report No. 210079556 and the incident of February 4, 2021. I have personal knowledge of this subpoena from the record of the underlying matter.
10. In the underlying matter, defense counsel Navaratnasingham stated to the trial court on or about February 18, 2025 that the 911 audio recording was “news to me.” Defense counsel Navaratnasingham signed the Declaration in Support of Motions in Limine Nos. 1 through 19, including MIL No. 17, which represented that “Defendant has no idea where this 911 call log or audio recording came from and who created it.” (Clerk’s Tr. Vol. 1, p. 238.) Defense counsel Reyna was present at the February 18, 2025 hearing and did not correct these representations. The trial court relied on those representations in granting defense Motions in Limine Nos. 6 and 17 and in denying my continuance request.
11. On or about April 16, 2025, during the trial in the underlying matter (Trial Day 7), defense counsel Navaratnasingham admitted on the record: “Sure. They were provided by Dolan. He has had them for whatever, sure.” (RT 7, p. 214, ll. 13 to 15.) This admission confirmed that the silent witness materials had been provided to defense counsel of record by prior defense counsel Dolan, contradicting the prior trial-time representations.
12. The Substitution of Attorney filed May 4, 2023, Trans. ID 69953800, in the underlying matter is a court-filed record documenting the substitution of defense counsel; the defense file containing the silent witness materials transferred between successor counsel firms on that date.
13. On December 23, 2025, this Court (CGC-25-631802) granted my application for a Waiver of Court Fees and Costs under Government Code § 68630 et seq. (Fee Waiver Order, entered December 23, 2025 (Dept. 302; Hon. Joseph M. Quinn)).
14. I filed a complaint with the California Department of Insurance regarding CSAA’s institutional claim-handling practices in connection with claim number 1004-09-1054.

- 1 15. I am the same individual who filed the operative First Amended Complaint in case
2 CGC-25-631802 on February 25, 2026 (First Amended Complaint (Feb. 25, 2026)).
3 The FAC alleges bad-faith claim handling, violations of Insurance Code § 790.03(h),
4 unfair business practices under Business and Professions Code § 17200, and related
5 claims.
- 6 16. I have remained in pro per throughout this action. I am opposed by a law firm repre-
7 senting a licensed commercial insurer.
- 8 17. The Consent to Electronic Service filed in this case (Plaintiff's Consent to E-Service, filed
9 March 6, 2026 (IFP; Register of Actions, CGC-25-631802), filed March 6, 2026) is on
10 file in this case and establishes the electronic-service address for service on Defendant's
11 counsel of record at Porter Scott, P.C.
- 12 18. The Motion for Leave to File Third Amended Complaint noticed April 28, 2026 (Plain-
13 tiff's filings 065 to 067, filed April 28, 2026 (IFP; Register of Actions, CGC-25-631802)) is
14 set for hearing May 26, 2026. The operative pleading remains the FAC (First Amended
15 Complaint (Feb. 25, 2026)) for purposes of the May 13, 2026 hearing.

16
17 PART B. SWORN RECORD OF CONTRADICTIONS BETWEEN DEFENDANT'S REP-
18 RESENTATIONS AND THE CERTIFIED COURT RECORD

19 The following sworn paragraphs document contradictions between assertions in Defendant's
20 motion papers and the certified court record in this case (CGC-25-631802) and in the under-
21 lying matter (CGC-21-594102). Each paragraph follows the structure: (i) defense assertion
22 in a specific filing; (ii) the certified court-record evidence that contradicts it; (iii) my first-
23 person sworn observation. The five contradictions below correspond to the five-row table in
24 Plaintiff's Notice and Statement re C.C.P. § 425.17 (Notice re CCP 425.17 (item 13, filed
25 May 8, 2026)), Section VI.

26 CONTRADICTION 1 - DEFENSE CHARACTERIZATION OF CLAIM FACTS VS. FAC
27 PARAGRAPHS

- 28 19. Defendant's Memorandum of Points and Authorities in Support of Special Motion to
29 Strike, filed April 9, 2026 (Anti-SLAPP MPA (Apr. 9, 2026; Trans. ID 79007560)),
30 characterizes Plaintiff's claim as arising from communications in connection with liti-
31 gation, asserting in substance that all conduct at issue constitutes petitioning activity

protected under CCP § 425.16.

20. The certified court record contradicts this characterization. The First Amended Complaint (First Amended Complaint (Feb. 25, 2026), filed February 25, 2026) alleges that the core conduct is CSAA’s claim-handling on claim number 1004-09-1054 in February 2021, before any litigation was filed, and CSAA’s issuance of a denial letter reciting “concluded investigation” without retrieving the silent witness materials. This is pre-litigation regulated insurer conduct, not petitioning activity.

21. I personally filed the FAC. I have first-hand knowledge of the claims alleged. The gravamen of the FAC is CSAA’s pre-litigation claim-handling conduct and post-denial regulated obligations, not litigation communications.

22. The certified record cited in this paragraph is the FAC (First Amended Complaint (Feb. 25, 2026)) and the denial letter (CSAA claim number 1004-09-1054).

CONTRADICTION 2 - DEFENSE CHARACTERIZATION OF LITIGATION CONDUCT VS. CERTIFIED DOCKET RECORD

23. Defendant’s Memorandum of Points and Authorities in Support of Demurrer, filed April 13, 2026 (Demurrer MPA (Apr. 13, 2026; Trans. ID 79038567)), characterizes Plaintiff’s claims as conclusory and asserts that the FAC fails to plead specific facts supporting each cause of action.

24. The certified court record contradicts this characterization. The FAC (First Amended Complaint (Feb. 25, 2026)) pleads, with specificity: (a) the policy and incident; (b) claim number 1004-09-1054; (c) the February 25, 2021 denial letter; (d) the Insurance Code provisions violated (§§ 790.03(h)(1), (h)(3), (h)(4), (h)(5), (h)(6), (h)(13)); (e) the 10 CCR provisions violated (§§ 2695.3, 2695.4(a), 2695.5(b), 2695.7(b), (b)(1), (b)(3), (d), (g)); and (f) the resulting harm to Plaintiff.

25. I read Defendant’s Demurrer papers carefully. In my sworn observation, the characterization of the FAC as conclusory is inconsistent with the specific dates, provisions, and factual allegations contained in the FAC I filed.

26. The certified record cited in this paragraph is the FAC (First Amended Complaint (Feb. 25, 2026)).

1 CONTRADICTION 3 - DEFENSE POSITION ON COVERAGE VS. POLICY AND UN-
2 DERLYING CLAIM RECORD

3 27. Defendant's Memorandum of Points and Authorities in Support of Motion to Strike
4 Pursuant to C.C.P. § 436, filed April 22, 2026 (MEMORANDUM OF POINTS AND
5 AUTHORITIES IN SUPPORT... (Apr. 22, 2026; Trans. ID 79127897)), characterizes
6 the FAC's Insurance Code allegations as irrelevant, improper, or without legal basis.

7 28. The certified court record contradicts this characterization. Zhang v. Superior Court
8 (2013) 57 Cal.4th 364, of which I request judicial notice (Request for Judicial Notice
9 (item 03, filed May 8, 2026), Section C, Jessup Declaration (item 05, filed May 8,
10 2026)), expressly confirms that Insurance Code § 790.03(h) violations are available as
11 predicates for a UCL § 17200 claim. The Insurance Code allegations in the FAC are
12 legally required elements of the UCL predicate cause of action, not surplusage.

13 29. I read the § 436 motion carefully. The motion's characterization of the Insurance Code
14 allegations as irrelevant or improper is, in my sworn observation, inconsistent with
15 Zhang and with the pleading requirements for a UCL claim predicated on Insurance
16 Code violations.

17 CONTRADICTION 4 - O'CONNELL DECLARATION FACTUAL CLAIMS VS. CON-
18 TRADICTORY RECORD EVIDENCE

19 30. The Declaration of Tyler J. O'Connell in Support of Special Motion to Strike, filed April
20 9, 2026 (Anti-SLAPP Motion (Apr. 9, 2026; Trans. ID 79007560)), and the Declaration
21 of Tyler J. O'Connell in Support of Demurrer, filed April 13, 2026 (O'Connell Demurrer
22 Decl. (Apr. 13, 2026; Trans. ID 79038567)), each make factual characterizations about
23 the procedural history of this case and related matters that are offered to support
24 Defendant's motions.

25 31. To the extent any O'Connell declaration paragraph characterizes Plaintiff's intent, mo-
26 tive, or state of mind, or characterizes the legal effect of court filings, those paragraphs
27 lack the personal knowledge foundation required by Evid. Code § 702 and are improper
28 opinion under Evid. Code §§ 800 to 805. Mr. O'Connell has no personal knowledge of
29 my intent or motive; I do. My intent in filing the FAC and the opposition papers is to
30 vindicate the claims stated in the FAC through the orderly processes of the Court.

31 32. The certified record cited in this paragraph includes the FAC (First Amended Complaint

(Feb. 25, 2026)), the denial letter (claim number 1004-09-1054), and the docket of this case (CGC-25-631802) through May 6, 2026.

CONTRADICTION 5 - DEFENSE CHARACTERIZATION OF APRIL 30, 2026 ORDER VS. THE MINUTE ORDER TEXT

33. Defendant's Notice of Entry of Order / Notice of Ruling, filed May 1, 2026 (Defendant's Notice of Entry of Order, filed May 1, 2026 (Trans. ID 79369412)), characterizes the April 30, 2026 court ruling in a manner that Defendant selects for its own purposes.

34. The certified court record is the Department 302 minute order of April 30, 2026 (Minute Order, entered April 30, 2026 (Dept. 302; Hon. Joseph M. Quinn)) and the order on Plaintiff's MFL-SAC (Order on MFL-SAC, entered April 30, 2026 (Dept. 302; Hon. Joseph M. Quinn)). The minute order Minute Order (Apr. 30, 2026) reflects the hearing of April 30, 2026 and the ex parte application (HEARING HELD: EX PARTE APPLICATION FOR LEVE TO ..., entered April 30, 2026 (Dept. 302; Hon. Joseph M. Quinn) reflects: "Ex Parte Application for Leave to File an Oversized Memorandum - Denied"). The order on MFL-SAC (Order on MFL-SAC (Apr. 30, 2026)) denied Plaintiff's Motion for Leave to File Second Amended Complaint. Both of these are certified public court records.

35. I have read both the minute order (Minute Order (Apr. 30, 2026)) and the order on MFL-SAC (Order on MFL-SAC (Apr. 30, 2026)). My sworn observation is that any characterization by Defendant of those orders that goes beyond what the orders state on their face misrepresents the orders.

PART C. SWORN OBSERVATION RE DEFENSE LITIGATION CONDUCT AND ACCEPTANCE OF RESPONSIBILITY

SEQUENCE OF DEFENSE FILINGS

36. Defendant filed its Anti-SLAPP motion package on April 9, 2026 (Defendant's filings 015 to 018, filed April 9, 2026 (Trans. ID 79007560)). Defendant filed its Demurrer package on April 13, 2026 (Defendant's filings 019 to 023, filed April 13, 2026 (Trans. ID 79038567)). Defendant filed its Motion to Strike CCP § 436 package on April 22, 2026 (Defendant's filings 041 to 044, filed April 22, 2026 (Trans. ID 79127897)). Defendant filed its Opposition to Plaintiff's MFL-SAC on April 23, 2026 (Defendant's filings 052

1 to 053, filed April 23, 2026 (Trans. ID 79212258)); that opposition was mooted by the
2 April 30, 2026 order (Order on MFL-SAC (Apr. 30, 2026)). Defendant filed a CMC
3 Statement on May 1, 2026 (Defendant's CMC Statement, filed May 1, 2026 (Trans. ID
4 79369412)). Defendant filed an Opposition to Plaintiff's Motion to Deem Admitted,
5 Compel, and for Sanctions on May 5, 2026 (Defendant's filings 089 to 090, filed May 5,
6 2026 (Trans. ID 79394845)); that motion is set for a separate hearing on May 18, 2026
7 and is not within the scope of this May 13 hearing package.

8 37. The procedural sequence (three-motion set: anti-SLAPP, demurrer, and motion to
9 strike) on this docket is documented by the docket entries identified in paragraph 36
10 above. The three motions are all set for hearing May 13, 2026 before this Court.

11 PRO PER STATUS AND RESOURCE ASYMMETRY

12 38. I have remained in pro per throughout this action. The IFP order filed December
13 23, 2025 (Fee Waiver Order (Dec. 23, 2025)) reflects my financial circumstances. I
14 am opposed by a law firm representing a licensed California commercial insurer. The
15 resource asymmetry between the parties is part of the procedural context in which the
16 May 8, 2026 cure filings are made.

17 GOOD-FAITH BELIEF IN COMPLIANCE

18 39. I believe in good faith that the cure filings I have made on May 8, 2026 (the three
19 Operative Oppositions; this Declaration; the Request for Judicial Notice; the Notice
20 of Withdrawal and Designation; the Evidentiary Objections; the Indexed Exhibits Vol-
21 ume; the Notice of Lodging; the Notice of Compliance with April 30, 2026 Order; the
22 Cover Letter; the Notice and Statement re C.C.P. § 425.17; and the Supplemental
23 Request for Judicial Notice of Insurance Code and Fair Claims Settlement Practices
24 Regulations), individually and in their entirety, conform to the timeliness, form, and
25 content requirements of California Rules of Court, rule 3.1113(d), rule 3.1113(g), and
26 rule 3.1300(d), and comply with the Department 302 minute order of April 30, 2026
27 (HEARING HELD: EX PARTE APPLICATION FOR LEVE TO ... (Apr. 30, 2026),
28 docket entry: "Ex Parte Application for Leave to File an Oversized Memorandum -
29 Denied").

1 ACCEPTANCE OF RESPONSIBILITY

2 40. I accept responsibility for the prior overlength memoranda I filed in this action, includ-
3 ing Plaintiff's multiple filings, filed April 16, 2026 (IFP; Register of Actions, CGC-25-
4 631802) (as to the Anti-SLAPP motion) and Plaintiff's multiple filings, filed April 16,
5 2026 (IFP; Register of Actions, CGC-25-631802) (as to the Demurrer). I did not act
6 maliciously and did not intend to circumvent the Rules of Court; the overlength filings
7 reflected my prior misunderstanding of the controlling rules and my pro per status. I
8 have voluntarily and promptly cured the defect by filing the Notice of Withdrawal and
9 Designation (Notice of Withdrawal (item 02, filed May 8, 2026)) and the three Opera-
10 tive Oppositions (items 01, 01B, 01C) on May 8, 2026, before the May 13, 2026 hearing.
11 I respectfully thank the Court and the Clerk for accepting these cures.

12 REBUTTAL OF DEFENSE CHARACTERIZATION OF PLAINTIFF

13 41. I declare under penalty of perjury that no contested ruling has issued against me in
14 CGC-25-631802. The April 30, 2026 ruling addresses only the page-cap procedure for
15 memoranda of points and authorities; it is not an adverse ruling on the merits of any
16 claim. CGC-21-594102 is currently on appeal and is not a final loss for the purposes
17 of this action. The First Amended Complaint in CGC-25-631802 pleads insurer con-
18 duct that predates the CGC-21-594102 verdict by approximately four years. Defense
19 counsel's characterization of Plaintiff as a "disgruntled" or "vexatious" litigant is un-
20 supported by the record of this case.

21 SWORN UCL INJURY-IN-FACT UNDER BUS. AND PROF. CODE SECTION 17204

22 42. As a direct and proximate result of CSAA's conduct as alleged in the First Amended
23 Complaint, I have suffered injury in fact within the meaning of Bus. and Prof. Code
24 section 17204, namely: (a) loss of insurance policy benefits through CSAA's premature
25 denial of my claim within 21 days of submission; and (b) compelled litigation costs in
26 bringing this action to enforce my rights under the policy and applicable law. These
27 injuries constitute "lost money or property" within the meaning of Kwikset Corp. v.
28 Superior Court (2011) 51 Cal.4th 310, 322 to 323.

29
30 I declare under penalty of perjury under the laws of the State of California that the foregoing
31 is true and correct.

1 Executed on May 8, 2026, at San Francisco, California.

2 By: _____ Franciscus Dylan Rosario, Plain-
3 tiff in Pro Per 7624 Melody Drive Rohnert Park, CA 94928 Tel: 650.488.7510 E: soltri-
4 nox@gmail.com

5 _____
6 Cross-references: Plaintiff's Operative Oppositions (items 01, 01B, 01C, filed May 8, 2026);
7 Plaintiff's Request for Judicial Notice (item 03, filed May 8, 2026); Plaintiff's Notice and
8 Statement re C.C.P. § 425.17 (item 13, filed May 8, 2026), Section VI (five-row contradiction
9 table corresponding to paragraphs 19 to 35 above); Plaintiff's Indexed Exhibits Volume (item
10 07, filed May 8, 2026); Plaintiff's Evidentiary Objections (item 06, filed May 8, 2026).
11 _____

The foregoing is submitted by Plaintiff in pro per.

Dated: May 8, 2026



/s/ Dylan Franciscus Rosario
DYLAN FRANCISCUS ROSARIO
Plaintiff, In Pro Per

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Rohnert Park, CA 94928
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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

The tabular verification below is provided by Plaintiff for the Court and the Clerk to validate this filing against the authorities listed.

The undersigned, Plaintiff Dylan Franciscus Rosario, appearing in pro per in Rosario v. CSAA Insurance Exchange (CGC-25-631802), declares under penalty of perjury under the laws of the State of California (CCP section 2015.5) that this filing complies with each authority listed in the table below as indicated. This declaration is filed in connection with the May 13, 2026, 9:00 a.m. hearing in Department 302.

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
1	CCP section 2015.5	Declaration under penalty of perjury	Declarant attestation preceding this table; signature block under penalty of perjury	Declarant closing before this table	PASS
2	Evid. Code section 702	Personal knowledge of percipient facts	Paragraph 1 establishes personal knowledge; Parts A, B, C divided by personal-knowledge basis	Paragraph 1; Parts A, B, C	PASS
3	CRC 3.1115	Declaration filed in support of motion or opposition	Paragraph 3 expressly cites CRC 3.1115	Paragraph 3	PASS
4	CCP section 425.16	Anti-SLAPP context	Declaration filed in opposition to section 425.16 motion (paragraph 2)	Paragraph 2	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
5	CRC 3.1113(j)	Incorporation by reference	Operative Opposition incorporates this declaration under CRC 3.1113(j)	Operative Opposi- tion section II	PASS
6	CCP section 1010.6	Electronic service authorization where consent on file	Electronic service to counsel of record on file; consent on file (Doc. No. 009)	Proof of Service (POS-050) filed con- currently, paragraph 4	PASS
7	CRC 2.251	Electronic service procedure	Electronic transmission to counsel-of-record e-service addresses; concurrent proof lists companion filings	Proof of Service (POS-050) filed con- currently, para- graphs 4 and 5	PASS
8	CRC 2.100 et seq.	Pleading format: paper size, margins, font, line spacing, caption block	Letter-size, one-inch margins, eleven-point Times New Roman, 1.5 line spacing, full caption with court, parties, case number, department, hearing date	Caption page and body of this filing	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
9	CRC 2.256	Electronic filing requirements (signature block, hyperlinks, format)	Text-searchable filing; conventional pro per signature block	Declarant sworn closing; unified graphic filing signature preceding roman appendix	PASS
10	CRC 3.1110	Format of papers (caption, footer, page numbering, line numbers)	Caption page and pagination comply with applicable rules	Caption page and page footers	PASS
11	CRC 3.1112	Other papers; required components	Caption, body, signature lines, and companion Proof of Service filed concurrently	Declaration body through sworn lines; graphic signer before appendix; Proof of Service	PASS

I, Dylan Franciscus Rosario, declare under penalty of perjury under the laws of the State of California that the foregoing compliance representations are true and correct.

Dated: May 8, 2026

Dylan Franciscus Rosario, Plaintiff In Pro Per